

HOUSE RESOLUTION 168

By Jones R

A RESOLUTION to recognize the importance of developing information concerning the regulation of fur-bearing animals.

WHEREAS, the laws of this State generally assign regulatory responsibility for agricultural livestock to the Department of Agriculture and assign regulatory responsibility for wildlife to the Tennessee Wildlife Resources Agency; and

WHEREAS, State law classifies fur-bearing mammals as Class III wildlife, which are exempt from permitting by the Tennessee Wildlife Resources Agency. Additionally, fur-bearing animals are not included in the definition of "livestock" for purposes of the Tennessee Livestock Dealer Act that is administered by the Department of Agriculture; and

WHEREAS, the existence of a regulatory gap with regard to fur-bearing animals fosters confusion and uncertainty concerning the proper treatment of animals that are raised for their fur and the stability of the agricultural market for such animals; and

WHEREAS, the Department of Agriculture and the Tennessee Wildlife Resources Agency are uniquely qualified to conduct research and opine on data and policy considerations related to the proper treatment of fur-bearing animals and the stability of the agricultural market for such animals, including, but not limited to:

1. How to best define the production of fur as an agricultural product;
2. An estimate of the number of agricultural operations that currently raise fur-bearing animals in Tennessee, disaggregated by species;
3. The animal species most commonly raised for fur and recommendations for how to legally define such species;
4. Recommendations for regulations to ensure the welfare of animals being raised for their fur;

5. Recommendations for regulations to ensure public health and safety in the event of a disease outbreak among fur-bearing animals or the escape of fur-bearing animals; and
 6. Other topics relevant to the regulation of agriculture involving fur-bearing animals;
- and

WHEREAS, the availability of data and policy recommendations concerning fur-bearing animals prior to the commencement of the organizational session of the One Hundred Fifteenth General Assembly would aid in the crafting of legislation to close the regulatory gap, ensure the welfare of fur-bearing animals, and alleviate uncertainty within the industry; now, therefore,

BE IT RESOLVED BY THE HOUSE OF REPRESENTATIVES OF THE ONE HUNDRED FOURTEENTH GENERAL ASSEMBLY OF THE STATE OF TENNESSEE, that the House of Representatives recognizes the importance of the Department of Agriculture and the Tennessee Wildlife Resources Agency, prior to the commencement of the organizational session of the One Hundred Fifteenth General Assembly, jointly conducting research and opining on data and policy considerations related to the proper treatment of fur-bearing animals and the stability of the agricultural market for such animals.

BE IT FURTHER RESOLVED, that an appropriate copy of this resolution be delivered to the Commissioner of Agriculture and the Executive Director of the Tennessee Wildlife Resources Agency.